

Order Granting Stay of Mandate

Stay granted on stated terms

The court grants the institutional respondent's October 23 motion to stay mandate pending preparation of a certiorari petition. The proposed question concerns the legal boundary between meaningful-consideration review and deferential treatment of agency fact findings. For purposes of this motion, the court finds a sufficient probability of certiorari review, a significant possibility of a different treatment of the remand standard, and good cause to preserve the status quo for a limited period.

Mandate is STAYED beginning October 30, 2025. The stay expires ninety days later, on January 28, 2026, unless the court extends it for good cause or the respondent files a certiorari petition and Rule 41(d)(2) continues the stay. The respondent must notify the clerk immediately upon filing, denial, dismissal, or other disposition affecting the stay.

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Expiration and notice conditions

If no certiorari petition is filed and no extension is granted, the clerk shall issue mandate when the stay expires on January 28, 2026. If a petition is filed within the stay period, mandate remains stayed until the Supreme Court's final disposition as provided by Rule 41(d)(2). If certiorari is denied, the clerk shall issue mandate immediately upon receipt of the denial unless another lawful order directs otherwise.

This order does not create an indefinite stay and does not change the September 9 opinion or judgment. It withholds their mandate effect only under the stated duration and conditions. The clerk shall serve both parties, monitor the ninety-day date, and require any extension request to show good cause before expiration. No mandate date earlier than the ending event shall be inferred while this order remains effective.